

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY

2025 OCT 31 A 9:35

In the Matter of:
Al-mira Amira Jazmine Davis, a Child

Case No: 25JU04261

**JUDGMENT OF
JURISDICTION AND DISPOSITION**

Petition Names: 1

This matter came before the court on 10/31/2025

Persons appearing:

Legal Father ☐ Alquan Adam Davis	Attorney ☐ : Hillsboro Law Group – Yvana Mols
Putative Father ☐	Attorney ☐ :
Mother ☐ Ashle Antoinette Penn	Attorney ☐ :
Child ☐ Al-mira Amira Jazmine Davis	Attorney ☐ : Ridehalgh & Associates – Ryan Lhotsky
Tribe ☐ :	Tribal Atty/Rep ☐ :
CASA ☐ : Lisa MacLellan	Deputy D.A. ☐ :
Guardian ☐ :	Asst. Atty Gen'l ☐ : Yazmin Wadia
ODHS Caseworker ☐ : David Milne	Other ☐ :
Guardian Ad Litem ☐ :	Other ☐ :

Relevant Dates and Current Placement

Date juvenile court jurisdiction established:

Date the child was last placed in substitute care:

Date the child was placed in current placement:

Current Placement: ☐ home with parent or guardian, **or** ☒ substitute care with: ☒ relative ☐
current caretaker ☐ non-relative/non-current caretaker ☐ residential ☐ other:

ODHS Documentation: The Department of Human Services (ODHS) ☒ **has** ☐ **has not**
prepared a written case plan that complies with the requirements of ORS 419B.343

Evidence Considered

<u>JURISDICTION</u>	<u>DISPOSITION</u>
☐ Stipulations by the parties ☒ The admissions described below ☐ The exhibits admitted at the hearing ☐ The testimony of the witnesses at the hearing ☐ The following facts/law, of which the court has taken judicial notice: Σ	☐ Stipulations by the parties ☒ The exhibits admitted by the court ☒ The testimony of the witnesses at the hearing ☐ The following facts/law, of which the court has taken judicial notice: Σ ☐ Other:

☐ Other:	
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The findings in this judgment are found by a preponderance of the evidence

1. SUMMONS, NOTICE, & PARTICIPATION

► Parties Summoned

☐ **Mother** was summoned to the hearing and appeared
☐ Mother was summoned to the hearing and failed to appear and she ☐ is ☐ is not a person in the military service who is entitled to the protections of the Servicemembers Civil Relief Act
☒ Other: Diligent efforts to serve pursuant to ORS 419B.914, and mother actively avoiding service and has an active warrant. Mother clearly is aware of these proceedings as she is submitting motions and emailing the court staff.

☒ **Father** was summoned to the hearing and appeared
☐ Father was summoned to the hearing and failed to appear and he ☐ is ☐ is not a person in the military service and who is entitled to the protections of the Servicemembers Civil Relief Act
☐ Other:

☐ Mother ☐ Father ☐ Guardian was provided the notice of obligations and rights required by ORS 419B.117

► Foster Parents or Care Providers

☒ The child is in substitute care and ODHS ☒ did ☐ did not give the foster parents or current care providers notice of the hearing

☒ The foster parents or current care providers did not attend the hearing
☐ The foster parents or current care providers attended the hearing and had an opportunity to be heard

► Grandparents

☒ ODHS ☒ **made** ☐ **did not make** diligent efforts to identify, obtain contact information for, and notify all grandparents of the hearing.

☒ No grandparents attended the hearing, **or**

The following grandparents attended the hearing and had an opportunity to be heard:

Maternal:

☐ Grandmother ☐ Grandfather

Paternal:

☐ Grandmother ☐ Grandfather

☐ The grandparents who attended the hearing were informed of the date of a future hearing
☐ ODHS **did not** give the grandparents notice of the hearing because ☐ a prior order relieved ODHS of the notice requirement **or** ☐ Σ
☐ For good cause shown, the court relieves ODHS of the responsibility to provide notice of this hearing to ☐ all grandparents **or** ☐ the following grandparents:

2. INDIAN CHILD WELFARE ACT (ICWA)

ODHS ☒ **did** ☐ **did not** make a good faith effort under ORICWA to determine whether the child is an Indian child

At this time, the court does not have reason to know that ICWA/ORICWA applies. No individual present at the hearing knows or has reason to know the child is an "Indian Child" under ICWA/ORICWA, and there is no additional information that has been presented that provides the court reason to know that ICWA/ORICWA applies. Or Laws 2021, ch. 398, §14.

3. JURISDICTION

- ▶ ☒ The child is under 18 years of age, and venue is proper in this court
- ▶ ☒ This court has jurisdiction under the UCCJEA to make a child custody determination
- ▶ ☐ Allegations in *Admissions to Petition* form accepted by the court on Σ are hereby incorporated into this judgment
- ▶ ☒ The following allegations were proved, admitted, dismissed and pending in a jurisdictional judgment on the dates set out below

Mark the appropriate column for each allegation listed

Allegations for Dad:					
#	Date of Judgment	Proved	Admitted	Amended	Text (or summary if full text in admissions form)
	October 14, 2025			D and E	
#	Date of Judgment	Dismissed	Pended	Text optional	

Allegations for Mom:					
#	Date of Judgment	Proved	Admitted	Amended	Text (or summary if full text in admissions form)
		A, B and C			
#	Date of Judgment	Dismissed	Pended	Text optional	

▶ Jurisdiction Finding

- ☒ The child **is within** the jurisdiction of the court under ORS 419B.100
☐ The child **is not within** the jurisdiction of the court under ORS 419B.100

4. DISPOSITIONAL FINDINGS

► PLACEMENT AND CUSTODY FINDINGS

In-Home Placement

- ☐ Placement in the **home** is in the child's best interest and for the child's welfare
- ☐ Placement in the legal custody of **ODHS** for in-home placement is in the child's best interest and for the child's welfare

Out-of-Home Placement

- ☒ Placement or continuation in substitute care is in the child's best interest and for the child's welfare based on the jurisdictional findings under ORS 419B.100 and because the child cannot be safely returned home/maintained in the home without further danger of suffering physical injury or emotional harm or endangering or harming others.

The court further finds that it is in the child's best interest and for the child's welfare to be placed:

- ☒ in the legal custody of ODHS for substitute care
☐ under protective supervision and substitute care per ☐ ORS 419B.331 ☐ ORS 419B.334

► Diligent Efforts

Relative Placement

- ☒ The child is in substitute care and ODHS ☒ has made ☐ has not made diligent efforts to place the child with a relative or person who has a caregiver relationship with the child as required by ORS 419B.192

- ☐ ODHS has decided to place the child with a relative or person who has a caregiver relationship with the child but that placement is not in the child's best interest because:

Sibling Placement

- ☐ The child is in substitute care and has one or more siblings. ODHS ☐ has made ☐ has not made diligent efforts to place the child with a sibling as required by ORS 419B.192
☐ Placement together is not in the best interest of the child or sibling

► Least Restrictive Placement

The selected placement ☒ **is** ☐ **is not** the least restrictive, most family-like setting that meets the health and safety needs of the child and is in reasonable proximity to the child's home

► SCHOOL OF ORIGIN

- ☐ The court finds **it is** in the child's best interest to attend the child's school of origin
☐ The court finds **it is not** in the child's best interest to attend the child's school of origin or any other school in the child's district of origin

► **Reasonable Efforts**

❖ **Findings Not Required**

- ☐ This judgment does not authorize the removal of the child from the home **and** the child is currently in the home and was not removed from the home before entry of this judgment
- ☐ This is not an ICWA case, and, pursuant to ORS 419B.340(5) and (6) (special circumstances), ODHS is not required to make reasonable efforts to reunify the child with ☐ Mother ☐ Father

❖ **Findings Required**

- ☐ This judgment commits the child to the **legal custody** of ODHS. The court has considered the circumstances of the child and parents and the child's health and safety. The court finds:

Efforts Prior to Removal

ODHS ☒ has **made** ☐ has **not made** reasonable efforts to prevent or eliminate the need for removal, as described below

☐ ODHS has made reasonable efforts because the agency's first contact with the family occurred during an emergency and the child could not remain without jeopardy in the home

☐ Although ODHS did not make the required efforts to prevent or eliminate the need for removal, additional preventive/ reunification efforts would not permit the child to remain safely in the home

Efforts Since Removal

ODHS ☒ has **made** ☐ has **not made** reasonable efforts to make it possible for the child to safely return home as described below

Description of preventive and reunification efforts and why those efforts were or were not sufficient and whether additional efforts would have been successful: Σ

☒ Description of efforts is received in Exhibit 1 and is adopted as the court's written findings (Mother actively evading ODHS despite multiple attempts by the agency).

The court considered whether placement of the child and referral to the Strengthening, Preserving and Reunifying Families Program is in the child's best interest as required by ORS 418.595

► **Case Plan**

The Current Case Plan Is:

☒ Reunification with ☒ Mother ☒ Father ☐ Other:

☐ Other plan:

To be achieved by *(date)*

The Concurrent Plan Is: Guardianship

THE COURT ORDERS:

☒ **Wardship** Based on the finding of jurisdiction, the child is made a ward of the court under ORS 419B.328

☐ **Dismissal** Based on the court's finding there is no jurisdiction, the petition/amended petition is dismissed

Placement, Legal Custody and Guardianship

► **In-Home**

☐ The court grants legal custody and guardianship (ORS 419B.372) of the child to ODHS for care, placement and supervision, and directs the child be placed at home subject to the following conditions:

OR

☐ The child is placed under the protective supervision of the court and in the legal custody of ☐ Mother ☐ Father ☐ Guardian subject to the following conditions:

► **Out-of-Home**

☒ The court grants legal custody and guardianship (ORS 419B.372) of the child to ODHS for care, placement and supervision

☐ The child is placed under the protective supervision of the court and in the legal custody of Σ pursuant to ☐ ORS 419B.331 ☐ ORS 419B.334

ICWA/ORICWA:

Each party is required to inform the court immediately if the party receives information that provides reason to know the child is an Indian child. ODHS is ordered to continue its inquiry into whether the child is an Indian Child and report the results of the inquiry to the court.

The Department of Human Services shall:

☒ Notify the court and attorneys when a child has been returned to parent or of any change in placement.

☒ Make appropriate referrals for court-ordered services for the parent(s) as soon as possible.

☒ Consult with the parent(s) attorney regarding the evaluator for the parent(s) and provide the attorney with a copy of the referral letter and a list of attachments at least one week before the evaluation.

☐ Prepare a comprehensive case plan with clear expectations and timelines by: Σ

☒ Maintain regular contact with the parents, service providers, care providers, and other relevant parties.

☐ ODHS is ordered to develop or modify the visitation plan to include the following provisions:

Σ

☐ Other: Σ

Parent name: Mom

The parent shall participate in and benefit from the following to address and resolve the safety threats that form the basis for Court's jurisdiction in this case:

☒ Visit the children regularly as arranged by ODHS.

☐ Complete a substance use disorder (SUD) evaluation.

☐ Successfully complete all SUD treatment and other sobriety support services recommended by the SUD evaluation and treatment provider(s).

☐ Participate in substance use testing as directed by treatment provider(s), ODHS or the Court.

☒ Participate in and successfully complete parent education and training: Σ

☐ Obtain and maintain stable and suitable housing.

☐ Undergo a psychological evaluation when referred by ODHS. Participate in all treatment and other services recommended by the evaluation that are reasonably related to the basis for jurisdiction: Σ

☐ Participate in mental health treatment: Σ

☒ Maintain contact with ODHS and keep ODHS advised of current contact information at all times.

☐ Enter and successfully complete an anger management program.

☐ Enter and successfully complete a batterer's intervention program.

☐ Participate in domestic violence counseling/support services.

☒ Clear and resolve all warrants and pending criminal matters.

☒ Comply with the terms of pretrial release, probation, parole, & post-prison supervision.

☐ Sign releases of information for ODHS for all services and keep such releases current.

☐ Participate in the child(ren)'s treatment and educational services as appropriate and as arranged by ODHS: Σ

☐ Other: Σ

Parent name: Dad

The parent shall participate in and benefit from the following to address and resolve the safety threats that form the basis for Court's jurisdiction in this case:

☒ Visit the children regularly as arranged by ODHS.

☐ Complete a substance use disorder (SUD) evaluation.

☐ Successfully complete all SUD treatment and other sobriety support services recommended by the SUD evaluation and treatment provider(s).

☐ Participate in substance use testing as directed by treatment provider(s), ODHS or the Court.

☐ Participate in and successfully complete parent education and training: Σ

☐ Obtain and maintain stable and suitable housing.

☒ Undergo a psychological evaluation when referred by ODHS. Participate in all treatment and other services recommended by the evaluation that are reasonably related to the basis for jurisdiction: Dad stipulates to this service with a CAPI

☐ Participate in mental health treatment: Σ

☐ Maintain contact with ODHS and keep ODHS advised of current contact information at all times.

☐ Enter and successfully complete an anger management program.

☐ Enter and successfully complete a batterer's intervention program.

☐ Participate in domestic violence counseling/support services.

☒ Clear and resolve all warrants and pending criminal matters.

☒ Comply with the terms of pretrial release, probation, parole, & post-prison supervision.

☒ Sign releases of information for ODHS for all services and keep such releases current.

☒ Participate in the child(ren)'s treatment and educational services as appropriate and as arranged by ODHS: Σ

☐ Other: Σ

Additional Orders: Σ

CASA

☐ CASA is appointed to represent the child

Visitation ORS 419B.337(3)

☐ ODHS is ordered to develop or modify the visitation plan to include the following provisions:

ODHS Disclosure of Records and Reports

Under ORS 419A.255(4)(a)(C), the Court consents to the use and disclosure of records, reports, materials or documents in the record of the case or the supplemental confidential file by ODHS if such use and disclosure is reasonably necessary to perform its official duties related to the involvement of the child with the juvenile court.

Additional Orders:

All parties present were notified of these court dates and are ordered to appear

Future Proceedings:

Type	Date	Time
<u>Review Hearing</u>	February 23, 2026	9:00am
<u>Permanency Hearing</u>	June 29, 2026	9:00am
If the child is in the legal custody of ODHS and placed in substitute care, the CRB will conduct a review of this case between 5 and 6 months from entry into care	DOCKETED	
Other:		
☐ No further hearings		

All parties present were notified of these court dates and are ordered to appear

October 31, 2025


Michele C. Rini Circuit Court Judge

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
JUVENILE DEPARTMENT

In the Matter of) Case No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS,) TRIAL
A Child.)

THIS MATTER came before the Court on _____ October 31, 2025, at 9:00am.

Present at the hearing were:

Juvenile Counselor _____ ODHS Emilie Marquand, David Milne

Child(ren) / Youth _____ OYA _____

Child(ren)/Youth's Attorney _____ Ryan Lhotsky

Mother Ashle Antoinette Penn Mother's Attorney _____

Father Alquan Adam Davis Father's Attorney Yvana Mols

Assistant Attorney General _____ Yazmin Wadia

CASA _____ Lisa MacLellan Alta Murphy

Resource Parent(s) _____

Grandparent(s) _____

Other _____

TRIAL COVER SHEET